

intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

The Court finds that Defendants deposition subpoena and the accompanying request for production of documents are relevant, as the items are reasonably calculated to lead to the discovery of admissible evidence. Plaintiff has waived privacy in his mobile phone records for the date of the accident by filing this lawsuit. The party seeking the constitutionally protected information has the burden to establish direct relevance. *Davis v. Sup. Ct.* (1992) 7 Cal. app. 4th 1008, 1017 (internal citations omitted). On the other hand, courts place the burden on the party asserting a privacy interest to establish the extent and seriousness of the alleged invasion and must weigh the countervailing interests of the opposing party identifies. *Williams v. Sup. Ct.* (2017) 3 Cal. 5th 531, 557.

Here, the Court concludes that plaintiff's cell phone records are directly relevant to the affirmative defense of comparative negligence. The records are relevant as to whether plaintiff was texting or on the call before or during the accident, and whether plaintiff was comparatively negligent. Such records are reasonably calculated to lead to the discovery of admissible evidence. Plaintiff's privacy interest does not outweigh the countervailing interests of discovery on the issue of comparative negligence.

Based on the foregoing, the Court finds good cause to grant Defendants' Motion.

Ruling

1. Defendants' Motion is granted on the condition that Compex can demonstrate that it served the agent for service of process for Verizon. This condition may be satisfied by the filing of a proof of service form no later than five (5) days from the date of this hearing.
2. The Court will execute the proposed order lodged by Defendants' counsel on December 23, 2025, attaching a copy of this tentative ruling.

23. 9:01 AM CASE NUMBER: C25-01656

CASE NAME: MARY O'BRIEN VS. JOHN ROGERS

***HEARING ON MOTION FOR DISCOVERY COMPEL SUPPLEMENTED DISCOVERY RESPONSES**

FILED BY: ROGERS, JOHN

TENTATIVE RULING:

This hearing was vacated by the moving party. No appearance is required on May 6, 2026.